

HOUSE No. 1621**The Commonwealth of Massachusetts**

PRESENTED BY:

Tackey Chan*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to assist the investigation of serious crimes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/17/2025</i>
<i>Michael Morrissey</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>
<i>Paul Tucker</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>
<i>Rob Galibois</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>
<i>Timothy Shugrue</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>
<i>David Sullivan</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>
<i>Timothy Cruz</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>

<i>Kevin Hayden</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>
<i>Joseph Early, Jr.</i>	<i>Massachusetts District Attorneys Association, 99 Summer Street, Boston, MA 02110</i>	<i>1/17/2025</i>

HOUSE No. 1621

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 1621) of Tackey Chan and others for legislation to assist the investigation of serious crimes. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1421 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to assist the investigation of serious crimes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 99 of chapter 272, as appearing in 2022 Official Edition, is hereby
2 amended in sub-section B.1 by striking, in lines 29-32, the definition of “wire communication”
3 and inserting in place thereof the following definition:-

4 1. The term “transmitted communication” means any communication made in whole or in
5 part through (i) the use of facilities which allow for the transmission of communications or (ii)
6 the aid of wire, cable, wireless, electronic, digital, radio, electromagnetic, satellite, cellular,
7 optical, or other like technological means in order to achieve a connection between a point of
8 origin and a point of reception, regardless of whether or not such communication travels in part
9 within a switching station or other like facility. The term “transmitted communication” shall
10 also include: any transfer of signs, signals, writing, images, photographs, videos, texts, sounds,

11 data, or intelligence of any nature transmitted in whole or in part by using a cellular telephone,
12 Smartphone, personal data assistant or similar devices, but shall not include: (i) any
13 communication made through a tone-only paging device; (ii) any communication from a tracking
14 device, defined as an electronic or mechanical device which permits the tracking of movement of
15 a person or object; or (iii) electronic funds transfer information stored by a financial institution in
16 a communications system used for the electronic storage and transfer of funds.

17 SECTION 2: Section 99 of chapter 272, as so appearing, is further amended at line 77, in
18 sub-section B.7 by adding at the end thereof, the following definition:-

19 The term “designated offense” shall also include, whether or not in connection with
20 organized crime, (i) any homicide; (ii) any crime that involves the use, attempted use, or
21 threatened use of force; (iii) any violation of the laws relating to controlled substances, as
22 defined in chapter 94C; (iv) any crime that involves the use, sale, purchase, delivery, transport,
23 or licensing of firearms; (v) human trafficking, as defined in sections 50 through 52 of chapter
24 265; (vi) being an accessory to any of the offenses described in this sentence and conspiracy or
25 attempt or solicitation to commit any of the offenses describes in this sentence.